

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK LLC.
COMPLAINANT,

V.
SHENZHEN UNIFELIX SCM LIMITED
RESPONDENT.

RESPONSE TO COMPLAINANT'S PROPOSED FINDINGS OF FACT

GENERAL RESPONSE

As a general matter, many of Way's proposed findings of fact improperly seek to rely upon a previously undisclosed expert report of Salvatore B. Guasto. See Objection filed concurrently.

SPECIFIC RESPONSES

1. The 20 at issue containers in this matter are TCNU6557513, TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TCNU6134091,

TGBU9704789, TXGU7117086, TXGU7120114, CLHU8963040, FANUI742269, TXGU7119812, TXGU7120330, TXGU7118550, BEAU4986763, UACU5979959, TXGU7118415, TXGU7120120, and TCNU6756449 (the “20 Containers”). (¶3, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶2, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

2. The actions of the Parties as it relates to the 20 Containers were governed by the Transport Contract the Parties signed on or about March 22, 2022 (“Transport Contract” or “Contract”). (¶4, Declaration of Salvatore B. Guasto (CX 7404-8011)). (CX 2-3). (¶3, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

3. Under the terms of the Transport Contract, Respondent had responsibility for Complainant’s trucking and sea freight export services. (CX 2). (¶5, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶4, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

4. The transportation of the cargo contemplated by the Transport Contract was port-to-door. (§6, Declaration of Salvatore B. Guasto (CX 7404-8011)).¹ (§5, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

5. Under the terms of the Transport Contract, the transportation charge could not be amended without both Parties' confirmation. (CX 2). (§7, Declaration of Salvatore B. Guasto (CX 7404-8011)). (§6, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement.

Complainant Way has not submitted evidence to support the contract upon which it relies.

6. Under the terms of the Transport Contract, neither of the Parties could alter any charge while the cargo was in transport. (CX 2). (¶8, Declaration of Salvatore B. Guasto (CX 74048011)). (¶7, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement.

Complainant Way has not submitted evidence to support the contract upon which it relies. The terms of the Transport Contract do not specify that the terms could not be altered while the cargo was in transport.

7. Under the terms of the Transport Contract, payment was due within 7 days after the cargo (or goods) was received at Complainant's local warehouse. (CX 2). (¶9, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶8, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement.

Complainant Way has not submitted evidence to support the contract upon which it relies.

8. Complainant's local warehouse was located in Elkhart, Indiana at 3002 Coast Court. (¶9, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

9. Payment was due by Complainant to Respondent seven (7) days after the cargo was transported to Complainant's local warehouse. (CX 2). (¶9, Declaration of Salvatore B. Guasto (CX 7404-8011)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

10. There was no provision for default or cure contained within the Transport Contract. (CX 2-3). (¶10, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶10, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed that the Transport Contract does not include a default or cure provision, but disputed that The Transport Contract constitutes a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

11. The 20 Containers contained cargo that was shipped from China to a port in California, and which would then be transported by rail to Chicago. From the rail yard, the 20 Containers were to be trucked to Complainant's facility in Elkart, Indiana. (¶¶9, 11,14, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. Complainant Way has not referenced evidence to support the contract upon which it relies.

12. From May 22, 2022 to June 25, 2022, the 20 Containers were shipped from China. (¶12, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶12, Declaration of Andrew McKenna (CX 7386-7403)). See chart below with references:

Container	Type of Shipment	Ref.	Date Left China	Ref.
BEAU4986763	Freehand ²	CX 126	6/18/2022	CX 127-138
CLHU8963040	Freehand	CX 187	6/1/2022	CX 188-193, 203-271
FANU1742269	Freehand	CX 331	5/22/2022	CX 332-346

² The information regarding the freehand status of the various containers was taken from documents produced by third-party Celestial Freight Solutions. Celestial Freight Solutions produced its documents by folders indicating that the documents referenced certain containers. The emails referencing the freehand shipment status were included in the folders for the particular container(s). The emails for Containers GAOU6616340, TCNU6134091, TCNU7351126, TGBU9704789, TLLU4212160, TLLU5558286, and TLLU5672365 were included together in one folder. (CX 2890). Freehand shipment was not referenced in the Transport Contract.

GAOU6616340	Freehand	CX 397	6/11/2022 CX 398-402
TCNU6134091	Freehand	CX 430	6/11/2022 CX 431-435
TCNU6557513			6/18/2022 CX 463-468
TCNU6756449			6/25/2022 CX 500-514
TCNU7351126	Freehand	CX 548	6/11/2022 CX 549-553
TGBU9704789	Freehand	CX 590	6/11/2022 CX 591-595
TLLU4212160	Freehand	CX 633	6/11/2022 CX 634-638
TLLU5558286	Freehand	CX 677	6/11/2022 CX 678-682
TLLU5672365	Freehand	CX 722	6/11/2022 CX 723-727
TXGU7117086			6/4/2022 CX 769-780
TXGU7118415			6/18/2022 CX 885-898
TXGU7118550	Freehand	CX 963	6/18/2022 CX 964-975
TXGU7119812			6/18/2022 CX 1057-1070
TXGU7120114			6/4/2022 CX 1116-1127
TXGU7120120	Freehand	CX 1213	6/18/2022 CX 1214-1225
TXGU7120330			6/18/2022 CX 1289-1302
UACU5979959			5/22/2022 CX 1348-1391

Response: Undisputed as to shipping dates. Disputed as to the remainder as unsupported by the evidence relied upon.

13. After the 20 Containers were in transport, the terms of the Transport Contract could not be changed as it related to those 20 Containers. (CX 2). (¶13, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶13, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies. Way has not cited to any evidence as to a binding contract for the transport of the cargo of 20 Containers. The terms of the Transport Contract also do not specify that the terms could not be altered while the cargo was in transport.

14. Under the terms of the Transport Contract, Respondent had responsibility for the trucking and sea freight export services for the 20 Containers. (CX 2). (¶14, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶14, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement.

Complainant Way has not submitted evidence to support the contract upon which it relies. The terms of the Transport Contract do not have any reference to transportation of 20 containers, or any references to shipments within any particular time frame.

15. Under the terms of the Transport Contract, Respondent had the responsibility to transport the 20 Containers to Chicago, Illinois and then to Complainant's facility in Indiana. (§14, Declaration of Salvatore B. Guasto (CX 7404-8011)). (§14, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies. The terms of the Transport Contract do not have any reference to transportation of 20 containers, or any references to shipments within any particular time frame.

16. Under the terms of the Transport Contract, Complainant was not obligated to pay Respondent until seven (7) days after the 20 Containers arrived at its facility

in Indiana. (CX 2). (¶9, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶15, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

17. On June 13, 14 and 15, 2022, the Parties engaged in email correspondence wherein Respondent requested that Complainant help to relieve the financial pressure of Respondent, including its need for additional funds to pay for truck drivers at the Chicago rail station because there were so many containers and because the shipping company required Respondent to pay sea freight within seven days after the shipment. (CX 5-10). (¶16, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

18. While Respondent's request could be construed as a request to change the Transport Contract, Complainant did not agree to change any of the terms of the Transport Contract. (¶17, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement.

Complainant Way has not submitted evidence to support the contract upon which it relies. The terms of the Transport Contract also did not restrict changes after transportation had begun. Complainant also agreed to pay the freight charges prior to delivery and to take delivery at the railyard in Illinois. See Decl. of R. Huang, ¶ 15.

19. The original terms of the Transport Contract remained intact. (¶17, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies.

20. The 20 Containers began arriving in the United States at various ports in California on June 20, 2022. (¶18, Declaration of Andrew McKenna (CX 7386-7403)). See the chart below with references:

<u>Container</u>	<u>Date Arrived in CA</u>	<u>Ref.</u>
BEAU4986763	7/19/2022	CX 149-150
CLHU8963040	6/27/2022	CX 296-297

FANU1742269 6/29/2022 CX 355-356

GAOU6616340 7/8/2022 CX 406-407

TCNU6134091 7/3/2022 CX 438-439

TCNU6557513 7/10/2022 CX 470-471

TCNU6756449 7/17/2022 CX 519-520

TCNU7351126 7/8/2022 CX 557-561

TGBU9704789 7/8/2022 CX 598-602

TLLU4212160 7/8/2022 CX 642-646

TLLU5558286 7/8/2022 CX 686-693

TLLU5672365 7/8/2022 CX 731-738

TXGU7117086 7/4/2022 CX 795-796

TXGU7118415 6/23/2022 CX 908-912

TXGU7118550 6/20/2022 CX 999-1000

TXGU7119812 6/20/2022 CX 1080-1081

TXGU7120114 7/3/2022 CX 1137-1138

TXGU7120120 6/23/2022 CX 1259-1260

TXGU7120330 6/20/2022 CX 1312-1313

Response: Undisputed.

21. Beginning in early July 2022, Complainant began to realize that Respondent was providing inaccurate invoicing and inflated claims of balances due. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence submitted does not support any finding that the invoicing was inaccurate, and Way has not communicated any documentation of errors to Unifelix. Way instead regularly used its claim of an “extensive audit” to delay payments. Declaration of R. Huang ¶18.

22. As a result, Complainant had to perform an extensive audit of Respondent’s invoices. (CX 51). (¶19, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence submitted does not support any finding that the invoicing was inaccurate, and Way has not communicated any errors to Unifelix. Way instead regularly used its claim of an “extensive audit” to delay payments. Declaration of R. Huang. ¶18.

23. This audit took time because of the lack of backup documentation for Respondent's invoices. (§19, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence submitted does not support any finding that the invoicing was inaccurate, and Way has not provided documentation any errors to Unifelix. Way instead regularly used its claim of an "extensive audit" to delay payments. Declaration of R. Huang ¶18.

24. The majority of the emails from Respondent contained spreadsheets without actual invoices, statements, or other documentation. (§19, Declaration of Andrew McKenna (CX 73867403)).

Response: Disputed. Unifelix regularly supplied all necessary documentation. The evidence submitted does not support any finding that the invoicing was inaccurate, and Way has not communicated or documented any errors to Unifelix. Way regularly used its claim of an "extensive audit" to delay payments. Declaration of R. Huang ¶ 18.

25. Based on the result from the audit, Complainant was prepared to pay Respondent for the amounts it owed for unrelated containers. (CX 51). (§20, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence submitted does not support any finding that the invoicing was inaccurate, and Way has not communicated any errors to

Unifelix. Way nonetheless refused to pay a portion of the invoice, which Unifelix accepted in order to resolve the dispute. Declaration of R. Huang ¶18..

26. On July 6, 2022, Dong G. Ngo with Ba-Shi Yuexin Logistics advised Celestial Freight Solutions that Container FANU1742269, which was part of the 20 Containers, and two other containers were in the Oakland, CA terminal pending rail due to delays from congestion and rail car shortage. (CX 362-363).

Response: Undisputed.

27. On July 12, 2022, Respondent, through Duke Zhang, its Overseas Coordinator, instructed its US agent, Celestial Freight Solutions, to hold all containers for Complainant and wait for Respondent's further notice. (CX 90). (¶21, Declaration of Andrew McKenna (CX 73867403)).

Response: Undisputed.

28. This delay affected the 20 Containers and was in violation of 46 C.F.R. §41102 as well as the Transport Contract . (¶21, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. No delay resulted from the alleged hold. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or

Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies. Any hold on Way's cargo was justified based upon Unifelix's lien. Decl. of G. Kardian, ¶¶12-15.

29. On July 19, 2022, Wayne Kaylor with Complainant advised Respondent that it received information on July 19, 2022, that Respondent had approached Complainant's vendors/suppliers for payment of freight. (CX 51, 105). (¶15, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶22, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

30. Respondent did not deny that it approached Way's vendors/suppliers, but instead on July 20, 2022, stated it had "not harassed suppliers and slandered your company. Our company collects the ocean freight from the shipper on the BL in accordance with Chinese law, which is allowed by Chinese law, on the premise that your company has not paid the freight. If you can pay the freight, our lawyer will stop asking the factory to pay the freight and stop taking the next legal measures against the factory." (CX 49-50, 106-107). (¶23, Declaration of Andrew McKenna (CX 7386-7403)). The Transport Contract does not call for the application of Chinese law. (CX 2).

Response: Undisputed.

31. On July 21, 2022, Respondent, through Duke Zhang, its Overseas Coordinator, instructed its US agent, Celestial Freight Solutions, to not release a shipment, which is believed to include Container CLHU8963040 (one of the 20 Containers) based on the indication from Celestial Freight Solutions in its production, and hold the pickup number for an unknown container. (CX 91).

Response: Disputed. The evidence does not support the proposed finding of fact.

32. On July 22, 2022, Respondent emailed Complainant and stated that because Complainant (according to Respondent) did not pay as agreed in the Transport Contract, Respondent would change the terms of the Contract and would no longer provide trucking delivery service at the destination port. (CX 12-13). (¶24, Declaration of Andrew McKenna (CX 73867403)).

Response: Undisputed that due to the financial strain caused by Way's failure to honor its obligations, Unifelix requested that Way arrange truck transport to its warehouse, which Way agreed to do and did. (Declaration of R. Huang.)

33. By the date of Respondent's July 22, 2022 email, all of the 20 Containers were sitting at various ports in California waiting to be loaded onto rail and transported to Chicago, Illinois. (¶25, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

34. On July 25, 2022, Respondent accused Complainant of breaching the Transport Contract, requested that Complainant sign a new contract, and stated that containers that were “stranded” at the port (which did not include the 20 Containers based on the documents produced in this matter) had incurred demurrage and detention charges which should be paid by Complainant. (CX 11). (¶26, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. Unifelix did not refer to the “Transport Contract.” Otherwise, undisputed.

35. On July 27, 2022, Respondent advised Complainant that it could not provide supporting documentation for its invoices including bills of lading demonstrating rail delivery to Chicago and receipt in the railyard, because “Carrier can’t provide any signed BOL demonstrating rail delivery to Chicago and receipt.” (CX 109). (¶29, Declaration of Andrew McKenna (CX 73867403)).

Response: Disputed. The evidence supplied does not support the proposed finding of fact. Way requested a signed rail bill of lading, and Unifelix’s email stated that the carrier could not provide that document. A signed rail bill of lading was not “supporting documentation” for Unifelix’s invoice as the cargo was moving under a through bill of lading.

36. The documentation confirming rail delivery to Chicago was important because under the terms of the Contract, Complainant was not required to pay Respondent until the cargo was transported from the railyard to Complainant's warehouse. (CX 2). (¶30, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. A signed rail bill of lading would not demonstrate delivery to Way's warehouse.

37. On July 28, 2022, Respondent threatened Complainant that if Complainant did not pay ocean freight for 67 unrelated containers, Respondent's "lawyer will send lawyer letter to your Chinese suppliers. Our lawyer will collect all ocean freight from suppliers through legal way. This is our official notice to your company." (CX 108-109). (¶31, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed as to the use of the term "threatened" Otherwise, undisputed.

38. On August 1 and 2, 2022, Respondent notified Complainant that 19 of the 20 Containers were in California. (¶32, Declaration of Andrew McKenna (CX 7386-7403)). See chart below with references.

<u>Container</u>	<u>Date Notified in</u>	<u>Ref.</u>
	<u>CA</u>	
BEAU4986763	8/1/2022	CX 149-150
CLHU8963040	Unknown	Unknown
FANU1742269	8/1/2022	CX 355-356
GAOU6616340	8/1/2022	CX 406-407
TCNU6134091	8/1/2022	CX 438-439
TCNU6557513	8/1/2022	CX 470-471
TCNU6756449	8/1/2022	CX 519-520
TCNU7351126	8/1/2022	CX 557-561
TGBU9704789	8/1/2022	CX 598-602
TLLU4212160	8/1/2022	CX 642-646
TLLU5558286	8/2/2022	CX 686-693
TLLU5672365	8/2/2022	CX 731-738
TXGU7117086	8/1/2022	CX 795-796
TXGU7118415	8/1/2022	CX 908-912
TXGU7118550	8/1/2022	CX 999-1000

TXGU7119812	8/1/2022 CX 1080-1081
TXGU7120114	8/1/2022 CX 1137-1138
TXGU7120120	8/1/2022 CX 1259-1260
TXGU7120330	8/1/2022 CX 1312-1313
UACU5979959	8/1/2022 CX 1393 -

1397

Response: Undisputed that Unifelix supplied regular and repeated notifications regarding the location of the 20 containers on numerous occasions.

39. On August 16, 2022, Candy Xiong with Galanz advised Complainant that Responent was pushing Galanz to arrange payment of ocean freight today for two unrelated containers. (CX 110-111). (¶33, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Objection as to relevance. Otherwise undisputed.

40. On August 22, 2022, Respondent's US agent, Celestial Freight Solutions, requested that Complainant sign a guarantee letter before releasing the pickup number for other containers which are not part of this matter, and that the containers would not be released until demurrage was paid (although Complainant

had otherwise paid for the transport of those containers). (CX 1428). (¶34, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence relied upon does not refer to a guarantee letter.

41. On August 22, 2022, Dong G. Ngo with Ba-Shi Yuexin Logistics requested that Respondent and Celestial Freight Solutions hold a shipment and not release it to Complainant because full payment had not been made on an unrelated container. (CX 92).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. The cited email refers to holding a single container that was not part of the 20 containers at issue here.

42. In mid to late August, and into September and October 2022, the 20 Containers were loaded onto a train for transportation from the ports in California to the railyard in Chicago. (¶17, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶35, Declaration of Andrew McKenna (CX 7386-7403)). See the chart below with references:

Container	Date Loaded onto Rail Ref.	Date Arrived in IL	Ref.
BEAU4986763	8/22/2022 CX 151-163	8/29/2022 CX 163	
CLHU8963040	8/22/2022 CX 298-308	8/29/2022 CX 308	

FANU1742269	8/10/2022 CX 365-373	8/17/2022 CX 373
GAOU6616340	8/17/2022 CX 408-410	8/24/2022 CX 410
TCNU6134091	8/14/2022 CX 440-442	8/19/2022 CX 442
TCNU6557513	8/24/2022 CX 472-473	8/29/2022 CX 473
TCNU6756449	8/30/2022 CX 521-525	9/4/2022 CX 525
TCNU7351126	8/23/2022 CX 562-564	8/28/2022 CX 564
TGBU9704789	8/23/2022 CX 603-605	8/28/2022 CX 605
TLLU4212160	8/23/2022 CX 647-649	8/28/2022 CX 649
TLLU5558286	8/23/2022 CX 694-696	8/28/2022 CX 696
TLLU5672365	8/17/2022 CX 739-741	8/24/2022 CX 741
TXGU7117086	8/17/2022 CX 797-807	8/26/2022 CX 807
TXGU7118415	9/15/2022 CX 918-928	9/23/2022 CX 928
TXGU7118550	8/22/2022 CX 1001-1013	8/29/2022 CX 1013
TXGU7119812	8/22/2022 CX 1082-1092	8/29/2022 CX 1092
TXGU7120114	8/20/2022 CX 1139-1146	8/27/2022 CX 1146
TXGU7120120	9/10/2022 CX 1261-1267	9/15/2022 CX 1267
TXGU7120330	8/20/2022 CX 1314-1324	8/27/2022 CX 1324

Response: Undisputed.

43. Demurrage began to accrue for some of the 20 Containers while the Parties were in a dispute over the unrelated containers that lasted until or around September 9, 2022. (¶37, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. The demurrage did not accrue due to any negotiations, but rather due to Way's failure to arrange payment and trucking as agreed. (Declaration of R. Huang ¶¶19-20)

44. Demurrage charges for the 20 Containers began after they arrived at the Chicago rail station while they were waiting for trucking transportation to Complainant's warehouse. (¶18, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶37, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed that demurrage charges accrued in the Chicago railyard.

45. Under the terms of the Transport Contract, Respondent was responsible for the trucking service for the 20 Containers. (CX 2). (¶19, Declaration of Salvatore B. Guasto (CX 74048011)).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies. (Declaration of R. Huang ¶¶19-20)

46. Although demurrage began to accrue on 19 of the 20 Containers, the demurrage dates remain unknown for the blanks in the chart below, and could not be ascertained through discovery.³ (¶22, Declaration of Salvatore B. Guasto (CX 7404-8011)). See chart below with references:

Container	Demurrage Begins	Ref.
BEAU4986763	9/7/2022	CX 176
CLHU8963040	9/7/2022	CX 327-329
FANU1742269	8/24/2022	CX 393-395
GAOU6616340		
TCNU6134091		
TCNU6557513		

TCNU6756449	9/10/2022 CX 516-518, 544-546
TCNU7351126	
TGBU9704789	
TLLU4212160	
TLLU5558286	
TLLU5672365	
TXGU7117086	9/1/2022 CX 824-826
TXGU7118415	9/29/2022 CX 943
TXGU7118550	9/8/2022 CX 1049
TXGU7119812	9/8/2022 CX 1106
TXGU7120114	9/7/2022 CX 1173-1175
TXGU7120120	9/22/2022 CX 1279-1280
TXGU7120330	9/7/2022 CX 1338- 1339
UACU5979959	10/24/2022 CX 1455- 1456

Response: Disputed. All demurrage invoices from the carriers were passed thru to Way. Any perceived deficiencies in the carriers' invoicing or documentation should have been raised at the time and could have been rectified at the time.

47. In or around early September, Respondent's representative and Complainant's representative "Gary" had at least one telephone call wherein Respondent requested that Complainant pay for 8 unrelated containers first, and that the 20 Containers would be released if the ocean freight was paid. (CX 88). (¶38, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. The email referred to from Rena Huang stated that as soon as Way paid the ocean freight, the containers would be released: "For the final 20 containers, you should pay all Sea Freight of 20 container together, we will process telex release BL to you as payment arrive our account." (CX 87-88.)

48. On September 2, 2022, Respondent stated that once the ocean freight was paid for the 20 Containers, it would telex release the 20 Containers. (CX 87-88). (¶39, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

49. The 20 Containers were essentially being held hostage for payment that was not yet due for the 20 Containers under the terms of the Transport Contract because the 20 Containers had not been delivered to Complainant's local warehouse. (CX 2).

Response: Disputed. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant Way has not submitted evidence to support the contract upon which it relies. The revised agreement required payment of ocean freight by Way to obtain the release of the containers. (Decl. of Huang; Decl. of G. Kardian, ¶¶12-15.)

50. On September 9, 2022, Complainant offered to pay \$449,575 for outstanding charges listed by Respondent (the total of which was \$465,270 listed by Respondent without backup documentation) after a review of Respondent's invoices:

- \$412,540.00 for payment in full for sea freight for 28 containers, including the 20 Containers;
- \$10,400.00 for partial payment of delivery fees for 8 unrelated containers (the delivery fees listed by Unifelix were significantly above market rate); and
- \$26,635.00 for unknown additional costs for 8 unrelated containers under protest.

(CX 82-83). (¶40, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed that Unifelix invoiced Way \$465,270 for transportation costs for 36 containers, and that Way belatedly paid a portion of that on September 9, 2022. During the delay in payment, demurrage charges accrued. Unifelix disputes that there were any unsupported, excess or above market rate charges.

The evidence submitted by Way does not support such a finding. Decl. of R. Huang, ¶¶18-20.

51. Respondent agreed to the payment of \$449,575 on September 2, 2022. (CX 82). (¶41, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. Unifelix invoiced Way for the full amount in July, 2022. Way failed to pay the ocean freight until September, 2022. During which time, demurrage accrued.

52. On September 13, 2022, payment of \$449,575 was initiated by Complainant in accordance with its agreement with Respondent. (CX 85). (¶42, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

53. After payment, on September 14, 2022, Respondent requested the pickup numbers for the 20 Containers. (CX 169 (with copies appearing in the sections of the Appendix for each container)). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶43, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

54. On September 15, 2022, Respondent instructed its US agent, Celestial Freight Solutions, to hold all of the pickup numbers for the 20 Containers and not release the 20 Containers until all demurrage charges had been paid. (CX 93, 112). (¶44, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed that the containers could not be released until demurrage charges were paid.

55. Demurrage had accrued on the 20 Containers because Respondent would not provide the trucking services from the Chicago rail station to Complainant's local warehouse. (¶25, Declaration of Salvatore B. Guasto (CX 7404-8011)).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. The demurrage accrued because Way did not pay ocean freight and arrange trucking as it agreed. (Decl. of R. Huang, ¶¶13-16)

56. The demurrage charges had accrued on the 20 Containers because Respondent violated the terms of the Transport Contract. (CX 2-3). (¶25, Declaration of Salvatore B. Guasto (CX 7404-8011)).

Response: Disputed. The evidence relied upon does not support the proposed finding of fact. The Transport Contract does not constitute a binding contract, Negotiated Service Arrangement or Negotiated Rate Arrangement. Complainant

Way has not submitted evidence to support the contract upon which it relies. The demurrage accrued because Way did not pay ocean freight as agreed. (Decl. of R. Huang, ¶¶13-16)

57. The pickup numbers were required for Way to remove the 20 Containers from the Chicago rail station. (¶29, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶45, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

58. Without the pickup numbers, the 20 Containers continued to accrue demurrage charges. (¶45, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

59. The unpaid demurrage charges listed in the September 15, 2022 email (CX 93, 112) were for the following containers which were NOT part of the 20 Containers: UFS22050434 (container FANU1103798)(CX 114-115); UFS22050690 (container FSCU7164495)(CX 114115); UFS22050740 (container HLXU8148845) (CX 114-115); UFS22050783 (container HLBU2241172)(CX 150); UFS22060607 (container HLBU1011473)(CX 150); UFS22050423 (container FANU1503412)(CX 114-115); and a MSK invoice in the amount of \$76,540 which correlates to 19

unrelated containers (CX 4615-4617). (CX 93, 112). (¶27, Declaration of Salvatore B. Guasto (CX 7404-8011)).

Response: Undisputed that the listed containers were not part of the 20 containers currently being litigated, but disputed that the containers listed containers were part of a different shipment from the 20 containers.

60. In that same September 15, 2022 email, Respondent told its US agent, Celestial Freight Solutions, that Complainant had a very bad reputation and delayed for a long time to process payment to Respondent. (CX 93, 112). (¶46, Declaration of Andrew McKenna (CX 73867403)).

Response: Undisputed.

61. On September 15, 2022, Rena Huang with Respondent told Dong G. Ngo with BaShi Yuexin Logistics to be sure to collect all charges from Complainant before they picked up a container(s). (CX 94-95).

Response: Undisputed that Rena Huang's email stated as follows: "Pls be sure to collect all charge from consignee/WAY INTERGLOBAL NETWORK LLC before they pick up container."

62. Dong G. Ngo replied to Rena Huang on September 15, 2022, that Celestial Freight Solutions (Respondent's US agent) was the consignee and invoices would be sent to Celestial Freight Solutions for payment. (CX 94).

Response: Undisputed.

63. On September 17, 2022, Cendy Rodriguez with Celestial Freight Solutions told Complainant that "[d]ue to very overdue invoices and high demurrage, destination carrier will not release the final 20 containers until your company clears all attached invoices." (CX 96). (§47, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

64. On September 22, 2022, Respondent told Celestial Freight Solutions (US agent for Respondent) to hold container TCNU6557513 (one of the 20 Containers) until all demurrage was paid because Respondent was worried that Way would not pay the demurrage charges. (CX 97-98).

Response: Undisputed.

65. On September 22, 2022, Rena Huang with Respondent told Dong G. Ngo with BaShi Yuexin Logistics to "Pls confirm us that your company and carrier HPL will

hold containers until consignee clear all demurrage charge. Otherwise it' s [sic] impossible to collect demurrage charge from this actual consignee if they get containers. We'd better to emphasize with shipping lines to hold containers until consignee all demurrage charge. Because consignee delay to pay payment and delay to pick up container. Consignee have full responsibility [sic] to pay all demurrage charge. Pls note it ,thank you!" (CX 100-101).

Response: Undisputed.

66. Dong G. Ngo replied to Rena Huang on September 22, 2022, that “[w]e have to release PU# to Celestial before containers LFD since I have no idea if/when these would be picked up. I Have already spoken with SSL & they will not hold cargo once pick up# released. Since Celestial is cnee on our bill., Celestial responsibility to either hold pick up# from end customer and/or advise trucker to NOT deliver until all charges are cleared.” (CX 99).

Response: Undisputed.

67. On September 23, 2022, Respondent advised Complainant that the estimated time of arrival to the Chicago rail station for Container TXGU7118415 (part of the 20 Containers) was on September 25 and that the pickup number would be “held until line demurrage is cleared for your shipments.” (CX 934). (¶48, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

68. On October 10, 2022, pickup numbers were released for the following containers which were part of the 20 Containers: TCNU6557513, TXGU7117086, TXGU7120114, CLHU8963040, FANU1742269, TXGU7119812, TXGU7120330, TXGU7120120, TXGU7118550, BEAU4986763, and TCNU6756449. (CX 174-175). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶49, Declaration of Andrew McKenna (CX 7386-7403)).³

Response: Undisputed.

69. On October 13, 2022, Respondent advised Complainant that, referring to the 20 Containers, “[t]hrough our unremitting communication and coordination, the US agent finally released 12 container PU# to your company. However, the US agent insisted that the consignee should settle the demurrage charges at the destination port before releasing the remaining 8 PU, because they were worried that once all the containers were released, they would be difficult to recover the demurrage charges, and the carrier would find trouble for them.” (CX 944-945). (¶50, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

70. On October 24, 2022, Respondent told Celestial Freight Solutions to hold containers TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, and TGBU9704789 (all part of the 20 Containers) until all demurrage was paid. (CX 102-103). (¶51, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

71. On October 24, 2022, Respondent advised Complainant that the pickup number for Container TXGU7118415 was not being held by Respondent or its US agent, Celestial Freight Solutions, but by the forwarder, Interfreight Logistics, and carrier, Hapag-Lloyd, until demurrage on two other containers were paid. (CX 946-956). (¶52, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

72. On October 24, 2022, Monarch Container Line dba Deckwell Sky (USA) advised Respondent and Complainant that it would not release the pickup number for Container UACU5979959 (one of the 20 Containers) until Hapag Lloyd's demurrage charges of \$98,925 were paid. (CX 1423-1449). (¶53, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

73. On October 24, 2022, Celestial Freight Solutions (US agent for Respondent) released the pickup number for 7 more containers (TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TGBU9704789, and TXGU7118415) (all part of the 20 Containers). (CX 423, with copies in the respective folders for each applicable container in the Appendix). (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶54, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

74. Therefore, on October 24, 2022, 19 of the 20 Containers had been released with their pickup numbers. The last pickup number was released on November 2, 2022. (¶23, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶54, Declaration of Andrew McKenna (CX 7386-7403)). See chart below with references.

Container	Date PU number requested Ref.	Date PU Number
	Provided	Ref.
BEAU4986763	9/14/2022 CX 169	10/10/2022 CX 174
CLHU8963040	9/14/2022 CX 313	10/10/2022 CX 324
FANU1742269	9/14/2022 CX 380	10/10/2022 CX 389
GAOU6616340	9/14/2022 CX 413	10/24/2022 CX 423
TCNU6134091	9/14/2022 CX 445	10/13/2022 CX 454-455

TCNU6557513	9/14/2022 CX 478	10/10/2022 CX 495
TCNU6756449	9/14/2022 CX 529	10/10/2022 CX 538
TCNU7351126	9/14/2022 CX 565	10/24/2022 CX 577
TGBU9704789	9/14/2022 CX 608	10/24/2022 CX 620
TLLU4212160	9/14/2022 CX 652	10/24/2022 CX 664
TLLU5558286	9/14/2022 CX 697	10/24/2022 CX 709
TLLU5672365	9/14/2022 CX 744	10/24/2022 CX 756
TXGU7117086	9/14/2022 CX 823	10/10/2022 CX 875
TXGU7118415	9/14/2022 CX 914	10/24/2022 CX 957
TXGU7118550	9/14/2022 CX 1038	10/10/2022 CX 1047
TXGU7119812	9/14/2022 CX 1095	10/10/2022 CX 1104
TXGU7120114	9/14/2022 CX 1164	10/10/2022 CX 1205
TXGU7120120	9/14/2022 CX 1268	10/10/2022 CX 1275
TXGU7120330	9/14/2022 CX 1327	10/10/2022 CX 1336
UACU5979959	9/14/2022 CX 1401	11/2/2022 CX 1462-1485

Response: Undisputed.

75. After the pickup numbers were provided, Complainant arranged for truck transportation to remove the 20 Containers from the Chicago yard to avoid incurring additional demurrage charges. (CX 178, 326, 391, 428, 456, 497, 540, 588, 631, 675, 720, 767, 877, 961, 1051, 1108, 1207, 1281, and 1340). (¶30, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶55, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

76. Seven of the 20 Containers also accrued rail storage and service charges, in addition to trucking fees for 10 of the 20 Containers, which were paid by Complainant. (CX 1486-1532). (¶30, Declaration of Salvatore B. Guasto (CX 7404-8011)). (¶55, Declaration of Andrew McKenna (CX 7386-7403)). See below with references:

Container	Trucking		Rail Yard Storage and Service	
	Fee	Ref.	Charge	Ref.
BEAU4986763	\$1,444.01	CX 1488	\$8,825.00	CX 1489
FANU1742269	\$1,444.01	CX 1493		
TCNU6134091			\$12,200.00	CX 1496
TCNU6557513	\$1,671.51	CX 1502		

TCNU6756449	\$1,389.01	CX 1504	\$7,475.00	CX 1505
TXGU7117086	\$1,484.01	CX 1513	\$250.00	CX 1514
TXGU7118550	\$1,389.01	CX 1518		
TXGU7119812	\$1,486.51	CX 1520	\$8,825.00	CX 1521
TXGU7120114	\$1,499.01	CX 1524		
TXGU7120120	\$1,609.01	CX 1526	\$5,171.25	CX 1527
TXGU7120330	<u>\$1,581.51</u>	CX 1530	<u>\$9,050.00</u>	CX 1531
TOTAL:	\$14,997.60		\$51,796.25	

Response: Undisputed that the amounts were billed and paid, but disputed that the charges would have been incurred if Way had picked up the cargo timely.

77. On October 25, 2022, while the pickup number for Container UACU5979959 was still being withheld, Hapag Lloyd issued a final demand letter in the amount of \$100,279 for demurrage charges. The letter did not specify the container numbers. (CX 1449). (¶56, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

78. The only invoices issued by Respondent for the 20 Containers were Debit Notes for “OCEAN FREIGHT PREPAID”. (CX 53-72). (¶57, Declaration of Andrew

McKenna (CX 7386-7403)). The ocean freight charged by Unifelix for the 20 Containers is listed below (¶58, Declaration of Andrew McKenna (CX 7386-7403)).:

<u>Container</u>	<u>Ocean Freight</u>	<u>Ref.</u>
BEAU4986763	\$14,700.00	CX 65
CLHU8963040	\$14,700.00	CX 69
FANUI742269	\$14,700.00	CX 68
GAOU6616340	\$14,700.00	CX 61
TCNU6134091	\$14,700.00	CX 71
TCNU6557513	\$14,700.00	CX 63
TCNU6756449	\$14,700.00	CX 67
TCNU7351126	\$14,700.00	CX 58
TGBU9704789	\$14,700.00	CX 72
TLLU4212160	\$14,700.00	CX 59
TLLU5558286	\$14,700.00	CX 60
TLLU5672365	\$14,700.00	CX 70
TXGU7117086	\$14,700.00	CX 55
TXGU7118415	\$14,700.00	CX 56

TXGU7118550 \$14,700.00 CX 66

TXGU7119812 \$14,700.00 CX 57

TXGU7120114 \$14,700.00 CX 54

TXGU7120120 \$14,700.00 CX 64

TXGU7120330 \$14,700.00 CX 62

UACU5979959 \$14,700.00 CX 53

\$294,000.00

Response: Undisputed.

79. Through discovery, Complainant discovered one instance of overcharging by Respondent as it relates to ocean freight. Despite charging Complainant \$14,700 for ocean freight, Respondent was only charged a total of \$18,500 for ocean freight for 10 containers, including one of the 20 Containers, which averages \$1,850 ocean freight per container. (¶59, Declaration of Andrew McKenna (CX 7386-7403)).

Container	Ocean Freight	Ref.	Actual Ocean Freight	Ref.
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CLHU8963040	\$14,700.00	CX 74	\$1,850.00 estimated	CX 74-80
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Response: Disputed. There is no authentication, source or explanation for the attached document (CX 79), and it is not the invoice that Unifelix was charged for

the ocean freight on Way's shipments. The rates reflected in that document also do not reflect Unifelix's expenses, and do not reflect the going rate for ocean carriage of containers at the time of the shipments at issue.

80. No documentation was attached to the ocean freight debit notes provided by Respondent to Complainant. (CX 53-72). (§57, Declaration of Andrew McKenna (CX 73867403)).

Response: Undisputed. As is customary for NVOCCs invoices for ocean freight.

81. Based on the information uncovered as it relates to Container CLHU8963040, it appears the ocean freight included other charges or was grossly inflated. (CX 74-80). (§59, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Disputed. There is no authentication, source or explanation for the attached document (CX 79), and it is not the invoice that Unifelix was charged for the ocean freight on Way's shipments. The rates reflected in that document also do not reflect Unifelix's expenses, and do not reflect the going rate for ocean carriage of containers at the time of the shipments at issue.

82. Based on the documentation reviewed by Complainant, there were two containers (FANU1742269 and TXGU7118415, both part of the 20 Containers) that

started to accrue demurrage charges before Complainant was notified by Respondent that the containers were even in Chicago. (CX 365-373, 374-375, 393-395, 918-928, 936-942, 943). (¶60, Declaration of Andrew McKenna (CX 7386-7403)). See chart below.

Container	Date Arrived in Chicago	Date Demurrage Begins	Date Complainant Notified
FANU1742269	08/17/2022 (CX 365-373)	08/24/2022 (CX 393-395)	09/01/2022 (CX 374-375)
TXGU7118415	09/23/2022 (CX 918-928)	09/29/2022 (CX 943)	09/30/2022 (CX 936-942)

83. Disputed. Notification of arrival was provided as to all containers. (Decl. of Huang, ¶21). As another example showing Respondent's and its US agent's practices in dealing with Complainant for other unrelated containers, on August 1, 2022, Complainant requested work orders from Celestial Freight Solutions for several containers. (CX 120-124). (¶61, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Undisputed.

84. Celestial Freight Solutions responded to Complainant's request for work orders by providing a sample work order and told Complainant to create the work order itself. (CX 118-119). (§62, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Irrelevant. Whether one of Unifelix's agent's was too busy to do Way's work for it is irrelevant to these proceedings.

85. Complainant responded on August 1, 2022 by asking Celestial Freight Solutions where the unrelated containers were located. (CX 118). (§63, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Irrelevant. Whether one of Unifelix's agent's was too busy to do Way's work for it is irrelevant to these proceedings.

86. Celestial Freight Solutions responded through a couple of emails that the information could be obtained from Complainant's custom broker because it was the broker's responsibility and Celestial Freight Solutions was "way behind & have no time to provide for all 65 containers." (CX 116-118). (§64, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Irrelevant. Whether one of Unifelix's agent's was too busy to perform customer service to Way's satisfaction is irrelevant to these proceedings.

87. Later that day, Respondent told Complainant that Celestial Freight Solutions “just explained that they already sent location [sic] detail to your broker before” and provided the locations of the unrelated containers. (CX 114-116). (¶65, Declaration of Andrew McKenna (CX 7386-7403)).

Response: Irrelevant. Whether one of Unifelix’s agent’s was too busy to perform customer service to Way’s satisfaction is irrelevant to these proceedings.

88. It was not until this FMC matter was instigated and the Parties engaged in discovery, that documentation from third parties was provided to show the charges for each of the 20 Containers. Yet, even now, there is still missing information which Respondent and third parties could not provide to justify the amounts charged by Respondent. Additionally, some charges were “bulk” charges so the individual container charges had to be estimated by dividing the total charge by the number of containers for the total charge. (¶66, Declaration of Andrew McKenna (CX 73867403)). See charts below with references, including Chart 4 which totals the freight and other charges which Complainant has obtained from the documents produced in this matter.⁴

⁴ As noted in more detail in the Argument section, these actions by Respondent are in violation of industry standards and a clear breach of Respondent’s duties as an NVOCC governed by the Commission. (¶¶21, 28, Declaration of Salvatore B. Guasto (CX 7404-8011)).

Response: Disputed. Way's vague reference to bulk invoices is irrelevant to the proceedings and most likely reflect that Unifelix was passing through costs and documentation provided by the carriers.

Chart 1

Container	Ocean		Actual Ocean	
	Freight	Ref.	Freight	Ref.
	CX 65, \$14,700.00			
BEAU4986763	148		\$3,646.00	CX 141-142
CLHU8963040	\$14,700.00	CX 69	\$1,850.00	CX 74-80
FANU1742269	\$14,700.00	CX 68	?	
GAOU6616340	\$14,700.00	CX 61	?	
TCNU6134091	\$14,700.00	CX 71	?	
TCNU6557513	\$14,700.00	CX 63	?	
TCNU6756449	\$14,700.00	CX 67	?	
TCNU7351126	\$14,700.00	CX 58	?	
TGBU9704789	\$14,700.00	CX 72	?	

TLLU4212160	\$14,700.00 CX 59 ?
TLLU5558286	\$14,700.00 CX 60 ?
TLLU5672365	\$14,700.00 CX 70 ?
TXGU7117086	\$14,700.00 CX 55 \$3,646.00 CX 781-782
TXGU7118415	\$14,700.00 CX 56 \$3,646.00 CX 901-902
TXGU7118550	\$14,700.00 CX 66 \$3,646.00 CX 978-979
TXGU7119812	\$14,700.00 CX 57 \$3,646.00 CX 1073-1074
TXGU7120114	\$14,700.00 CX 54 \$3,646.00 CX 1128-1129
TXGU7120120	\$14,700.00 CX 64 \$3,646.00 CX 1228-1229
TXGU7120330	\$14,700.00 CX 62 \$3,646.00 CX 1305-1306
UACU5979959	<u>\$14,700.00</u> CX 53 ?

\$294,000.00

Chart 2

THC

Origin	Ref. (THC and	Export	Other
Container Fee	Export Fees)	Fee Fees	Ref.

BEAU4986763	\$1,538.00	CX 139-140	\$30.00	\$8,860.00	CX
141-142					
CLHU8963040	\$1,538.00	CX 199-202	\$30.00	\$8,510.00	CX
194-198					
FANU1742269	\$1,538.00	CX 347-348	\$30.00	\$2,757.00	CX
349-352					
GAOU6616340					
TCNU6134091					
TCNU6557513					
TCNU6756449					
TCNU7351126					
TGBU9704789					
TLLU4212160					
TLLU5558286					
TLLU5672365					
TXGU7117086	\$1,538.00	CX 783-784	\$30.00	\$4,864.00	CX 781-782,
787-789					

TXGU7118415	\$1,538.00	CX 899-900	\$30.00	\$4,864.00	CX 901-902
TXGU7118550	\$1,538.00	CX 7976-977	\$30.00	\$4,864.00	CX 978-979
TXGU7119812	\$1,538.00	CX 1071-1072	\$30.00	\$4,864.00	CX 1073-1074
TXGU7120114	\$1,538.00	CX 1130-1131	\$30.00	\$4,864.00	CX 1132-1134
TXGU7120120	\$1,538.00	CX 1226-1227	\$30.00	\$4,864.00	CX 1228-1229
TXGU7120330	\$1,538.00	CX 1303-1304	\$30.00	\$4,864.00	CX 1305-1306
UACU5979959					

Chart 3

	Value	Congestion
	Added	Fee Ref.
Container	Surcharge Ref.	
BEAU4986763	\$1,850.00 CX 143-146	
CLHU8963040	\$1,850.00 CX 272-285	\$350.00 CX 272-285
FANU1742269	\$1,850.00 CX 349-352	
GAOU6616340		
TCNU6134091		
TCNU6557513		

TCNU6756449

TCNU7351126

TGBU9704789

TLLU4212160

TLLU5558286

TLLU5672365

TXGU7117086	\$1,850.00 CX 787-789	\$350.00 CX 787-789
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TXGU7118415	\$1,850.00 CX 903-906	\$350.00 CX 901-902
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TXGU7118550	\$1,850.00 CX 980-983	\$350.00 CX 978-979
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TXGU7119812	\$1,850.00 CX 1075-1078	\$350.00 CX 1073-1074
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TXGU7120114	\$1,850.00 CX 1132-1134	\$350.00 CX 1132-1134
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TXGU7120120	\$1,850.00 CX 1230-1233	\$350.00 CX 1228-1229
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TXGU7120330	\$1,850.00 CX 1307-1310	\$350.00 CX 1305-1306
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UACU5979959

Chart 4

Late Fee

in Port

	Handling	Leaving		Congestion	
	Charge	Ref.	Port	Ref.	Fee? ⁵
Container					Ref.
BEAU4986763	\$21.67	CX 147	\$250.00	CX 164	
CLHU8963040					\$18,500.00 CX 288-289
FANU1742269	\$21.67	CX 353			
GAOU6616340	\$13.00	CX 404			
TCNU6134091					
TCNU6557513					
TCNU6756449					
TCNU7351126	\$13.00	CX 554			
TGBU9704789					
TLLU4212160	\$13.00	CX 639			
TLLU5558286	\$13.00	CX 683			
TLLU5672365	\$13.00	CX 728			

⁵ The invoice was included in a folder produced by Celestial Freight Solutions for Container CLHU8963040. (Compare CX 2761, corresponding to Celestial Freight 000060 to CX 2770-2771 corresponding to Celestial Freight 000069-000070, which matches CX 288-289).

TXGU7117086 \$250.00 CX 785

TXGU7118415 \$250.00 CX 913

TXGU7118550 \$21.67 CX 989

TXGU7119812

TXGU7120114

CX

TXGU7120120 \$21.67 1239

TXGU7120330

UACU5979959

90. As a result of Respondent's wrongful and illegal actions, Complainant has incurred the following damages (¶31, Declaration of Salvatore B. Guasto (CX 7404-8011))(¶67, Declaration of Andrew McKenna (CX 7386-7403)):

Container	Trucking	Ref.	Rail Yard	Ref	Demurrage	Ref.
	Fee		Storage and			
			Service			
			Charge			
BEAU4986763	\$1,444.01	CX	\$8,825.00	CX 180-181	\$6,230.00	CX 176-177, 182-

179		184
		\$6,050.00 CX 327-329
CLHU8963040		\$8,750.00 CX 393-395
FANU1742269	\$1,444.01 CX	\$6,050.00 CX 403 \$6,050.00
392	\$12,200.00 CX 457	CX 436
GAOU6616340	-461	
TCNU6134091		
TCNU6557513	\$1,671.51 CX	
498		
TCNU6756449	\$1,389.01 CX \$7,475.00 CX 542-543	\$5,690.00 CX 516-518, 544-
	541	546
TCNU7351126		\$6,050.00 CX 555
TGBU9704789		\$6,050.00 CX 596
TLLU4212160		\$6,050.00 CX 640
TLLU5558286		\$6,050.00 CX 684
TLLU5672365		\$6,050.00 CX 729

TXGU7117086	\$1,484.01 CX	\$250.00 CX 879-880	\$7,490.00 CX 824-826, 881-
TXGU7118415	878		883
TXGU7118550	\$1,389.01 CX		\$4,610.00 CX 943
	1052		\$6,050.00 CX 1049-1050
TXGU7119812	\$1,486.51 CX	\$8,825.00 CX 1110-	\$6,050.00 CX 1106-1107
TXGU7120114	1109	1111	\$6,050.00 CX 1173-1175,
	\$1,499.01 CX		1209-1211
	1208		
TXGU7120120	\$1,609.01 CX	\$5,171.25 CX 1283-	\$3,530.00 CX 1280-1281
	1282	1284	
TXGU7120330	<u>\$1,581.51</u> CX	<u>\$9,050.00</u> CX 1342-	\$6,230.00 CX 1338-1339
UACU5979959	1341	1343	<u>\$2,155.00</u> CX 1459-1460
TOTAL:	\$14,997.60	\$51,796.25	\$78,105.00

Response: Disputed. Way seeks to obtain transportation free of charge. The trucking invoices would have been billed through to Way if Unifelix had arranged the trucking. Way provides no explanation as to why rail storage was incurred. Further, the demurrage was incurred due to Way's failure to pay its ocean freight bill promptly to obtain the prompt release of the containers. Way had been advised

of the arrival of the containers and that demurrage would accrue if they did not settle the freight bill and obtain release of the containers. (Decl. of R. Huang 13-20).

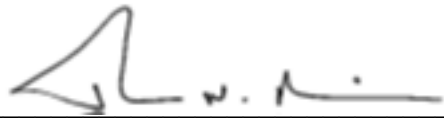
91. Interestingly, Respondent's Interrogatory responses dated August 4, 2023 do not match the demurrage amounts produced in this litigation. (CX 1550 – 1563, at Interrogatory No. 27).

Response: Irrelevant.

Dated this 6th day of October 2022

Respectfully submitted,

By:



Theodore H. Adkinson

ROBERTS & KEHAGIARAS LLP

100 W. Broadway, Suite 660

Long Beach, CA 90802

Attorneys for Respondent

Shenzhen Uniflex SCM Limited

CERTIFICATE OF SERVICE

I hereby certify that on the 6th day of October 2023, I served the foregoing **RESPONSE TO COMPLAINANT'S PROPOSED FINDINGS OF FACT** to the parties listed below by mailing.

Lyndsey C. Brock III, Esq.
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By:



Employee of ROBERTS & KEHAGIARAS
LLP